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ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

APR 20 2015

Clerk of the Court
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7 SUPERIOR COURT OF THE STATE OF CALIFORNIA
8 FOR THE COUNTY OF SAN FRANCISCO

9
10 TERANCE BAGBY,
11 GEORGE BENDER,
12 CURTIS BERNARD,
13 REBECCA BUSCIGLIO,
14 PATRICIA CELESTINE,
15 HORACE CHAPPLE,
16 ANITA CUNNINGHAM,
17 GERARDA DAMING,
18 CARMELA GIORDANO IACENDA, as
19 successor in interest to THE ESTATE OF
20 MARY DIGUISEPPI,
21 MICHAEL DISMUKE,
22 JAMES ELLIS II,
23 ALEXANDRA ELVIR,
FRANCISCO FLORES,
JUDY KEMP,
KEITH KEMP,
DEBORAH MCDONALD,
MENDEL PRATT,
LARRY THOMAS,
SOLOMON WATKINS,
KEITH WILLIAMS, and
PETER WONG

24 Plaintiffs,

25 vs.

26 SAN FRANCISCO HOUSING
27 AUTHORITY, a public entity, and
DOES 1 through 10,

28 Defendants.

Case No.: CGC-14-540165

(Unlimited Civil Case)

SECOND AMENDED COMPLAINT FOR:

(1) BREACH OF THE WARRANTY OF
HABITABILITY;

(2) TORTIOUS BREACH OF THE
WARRANTY OF HABITABILITY;

(3) NUISANCE;

(4) NEGLIGENCE;

(5) BREACH OF THE COVENANT OF
QUIET ENJOYMENT;

(6) TORTIOUS BREACH OF THE
COVENANT OF QUIET ENJOYMENT;

(7) ELDER ABUSE;

(8) DISPARATE IMPACT DISABILITY
DISCRIMINATION IN VIOLATION OF
THE FAIR EMPLOYMENT AND HOUSING
ACT;

(9) FAILURE TO MAKE A REASONABLE
ACCOMMODATION IN VIOLATION OF
THE FAIR EMPLOYMENT AND HOUSING
ACT; and

(10) INJUNCTIVE RELIEF

1 Plaintiffs Terance Bagby, George Bender, Curtis Bernard, Rebecca Busciglio, Patricia
2 Celestine, Horace Chapple, Anita Cunningham, Gerarda Daming, Carmela Giordano Iacenda,
3 as successor in interest to the Estate of Mary DiGuisseppi, Michael Dismuke, James Ellis II,
4 Alexandra Elvir, Francisco Flores, Judy Kemp, Keith Kemp, Deborah McDonald, Mendel Pratt,
5 Larry Thomas, Solomon Watkins, Keith Williams, and Peter Wong (collectively, "Plaintiffs")
6 sue the San Francisco Housing Authority, a public entity, and Does 1 to 10, (collectively,
7 "Defendants"), and demand a trial by jury of all issues, and for causes of action allege:

8 ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

9 1. The acts and/or failures to act complained of herein occurred in San Francisco
10 County, State of California.

11 2. Plaintiffs are residential tenants in a complex made up of two thirteen-story
12 buildings located at 320 Clementina Street, San Francisco, California and 330 Clementina
13 Street, San Francisco, California (the "Clementina Towers").

14 3. The Clementina Towers is owned and operated by the San Francisco Housing
15 Authority and DOES 1 through 10. Upon information and belief, the San Francisco Housing
16 Authority ("Housing Authority") is a public body, corporation, and/or agency, organized,
17 created, and existing under the laws of the State of California and/or City and County of San
18 Francisco.

19 4. Plaintiffs are ignorant of the true names, involvement or capacities of Defendants
20 DOES 1 through 10. Plaintiffs are informed and believe that each Defendant DOE is in some
21 way responsible for Plaintiffs' damages. Plaintiffs will amend this complaint when they learn
22 the true name of any Defendant DOE.

23 5. The San Francisco Housing Authority and DOES 1 through 10 are sometimes
24 collectively referred to herein as "Defendants."

25 6. At all times mentioned herein, Defendant Housing Authority employed persons
26 to operate, manage, and maintain the Clementina Towers ("Property Managers"), including but
27 not limited to Maggie Chan, Miguel Paltao, Barbara Smith, and Suresa Tauai.

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1 7. At all times mentioned herein, the Property Managers were acting within the
2 course and scope of their employment and were acting with the consent, permission, and
3 authorization of Defendant Housing Authority. All actions of each of the Property Managers
4 were ratified and approved by Defendant Housing Authority.

5 8. Because the unlawful acts and/or omissions described herein were carried out by
6 employees of Defendant Housing Authority who were acting within the course and scope of
7 their employment, Defendant Housing Authority is liable to Plaintiffs pursuant to California
8 Government Code section 81502, which provides that “[a] public entity is liable for injury
9 proximately caused by an act or omission of an employee of the public entity within the scope
10 of his employment if the act or omission would, apart from this section, have given rise to a
11 cause of action against that employee or his personal representative.”

12 9. Plaintiffs are residents of public housing in the County of San Francisco, and
13 therefore have maintained landlord-tenant relationships with Defendant Housing Authority for
14 the duration of their tenancies at the Clementina Towers. Plaintiffs are all elderly and/or
15 disabled, and thereby qualified for residency in the Clementina Towers. Plaintiffs have paid
16 their rent as required by their lease agreements and otherwise fulfilled their obligations under
17 their lease agreements.

18 10. Plaintiff Terance Bagby has been a lease-holding tenant at 320 Clementina
19 Street, Apartment 806, San Francisco, California since approximately July 2006. It is often
20 difficult for Mr. Bagby to walk up or down stairs because he suffers from sciatica and a
21 herniated disk in his back. His apartment is on the eighth floor.

22 11. Plaintiff George Bender has been a lease-holding tenant at 320 Clementina
23 Street, Apartment 1322, San Francisco, California since approximately 2004. Mr. Bender is
24 unable to walk up or down stairs because he is blind and primarily uses a scooter to move
25 around.

26 12. Plaintiff Curtis Bernard has been a lease-holding tenant at 320 Clementina Street,
27 Apartment 1214, San Francisco, California since approximately 2006. Mr. Bernard is
28 permanently disabled and uses a cane to walk. As a result, it is difficult for him walk up or

1 down stairs. His apartment is on the twelfth floor. Mr. Bernard is sixty-nine years old.

2 13. Plaintiff Rebecca Busciglio has been a lease-holding tenant at 330 Clementina
3 Street, Apartment 903, San Francisco, California since approximately 2004. Ms. Busciglio has
4 a heart condition that prevents her from being able to climb stairs. She often uses a walker. Her
5 apartment is on the ninth floor.

6 14. Plaintiff Patricia Celestine has been a lease-holding tenant at 320 Clementina
7 Street, Apartment 522, San Francisco, California since approximately 2005. Because Ms.
8 Celestine uses a cane to walk, it is difficult for her to walk up or down stairs. Her apartment is
9 on the fifth floor.

10 15. Plaintiff Horace Chapple has been a lease-holding tenant at 320 Clementina
11 Street, Apartment 816, San Francisco, California since approximately August 2012. Mr.
12 Chapple has recurring problems with his back and legs. As a result, he often has difficulty
13 walking up or down stairs. His apartment is on the eighth floor.

14 16. Plaintiff Anita Cunningham has been a lease-holding tenant at 320 Clementina
15 Street, Apartment 212, San Francisco, California since approximately March 2008. Ms.
16 Cunningham suffers from sciatica and anxiety. It is often difficult for her to walk up or down
17 stairs and being stuck in small spaces, like elevators, increases her anxiety. Ms. Cunningham
18 lives on the second floor.

19 17. Plaintiff Gerarda Daming has been a lease-holding tenant at 320 Clementina
20 Street, Apartment 1314, San Francisco, California since approximately 1976. Ms. Daming is
21 eighty years old and uses a wheelchair. It is impossible for her to walk up or down stairs. Ms.
22 Damming lives on the thirteenth floor.

23 18. Mary DiGuseppi was a lease-holding tenant at 320 Clementina Street,
24 Apartment 1020, San Francisco, California from approximately 1981 until her death on
25 December 5, 2014. Ms. DiGuseppi was born in 1920 and could only walk with the assistance
26 of a walker. It was impossible for her to walk up or down stairs. Ms. DiGuseppi lived on the
27 tenth floor. Plaintiff Carmela Giordano Iacenda is the successor in interest to the Estate of
28 Mary DiGuseppi. Plaintiff Carmela Giordano Iacenda, as the successor in interest to the Estate

1 of Mary DiGuseppi, has complied with Code of Civil Procedure section 377.32 by filing the
2 Declaration of Carmela Giordano Iacenda. Mary DiGuseppi died intestate at the age of ninety-
3 four. At the time of her death, Mary DiGuseppi had no living husband, living parents, or living
4 parents. Carmela Giordano Iacenda is the only living sibling of Mary DiGuseppi and the
5 intestate heir to her estate. Accordingly, she is Mary DiGuseppi's successor in interest (as
6 defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the Mary
7 DiGuseppi's interest in the action. No action is now pending in California for the
8 administration of Mary DiGuseppi's estate, and no other person has a superior right to continue
9 the above-captioned action.

10 19. Plaintiff Michael Dismuke has been a lease-holding tenant at 330 Clementina
11 Street, Apartment 519, San Francisco, California since approximately April 2012. Mr. Dismuke
12 walks with a cane and occasionally needs a wheelchair. It is difficult for him to walk up or
13 down stairs. Mr. Dismuke has a service animal that resides with him. When the elevators are
14 not functioning, Mr. Dismuke has to pay someone to take his dog outside to use the restroom.
15 Mr. Dismuke lives on the fifth floor.

16 20. Plaintiff James Ellis II has been a lease-holding tenant at 320 Clementina Street,
17 Apartment 1116, San Francisco, California since approximately November 2012. Mr. Ellis
18 walks with a cane. It is difficult for him to walk up or down stairs. Mr. Ellis lives on the
19 eleventh floor.

20 21. Plaintiff Alexandra Elvir has been a lease-holding tenant at 330 Clementina
21 Street, Apartment 1311, San Francisco, California since approximately 1999. Ms. Elvir is
22 wheelchair bound. It is impossible for her to walk up or down stairs. Ms. Elvir has a service
23 animal that resides with her. Ms. Elvir lives on the thirteenth floor.

24 22. Plaintiff Francisco Flores has been a lease-holding tenant at 330 Clementina
25 Street, Apartment 1215, San Francisco, California since approximately 2010. Mr. Flores suffers
26 from arthritis and it is difficult for him to walk up or down stairs. Mr. Flores lives on the
27 twelfth floor.

28 23. Plaintiffs Judy Kemp and Keith Kemp have been lease-holding tenants in the

1 Clementina Towers since approximately February 2011. They resided at 330 Clementina Street
2 until approximately May 2013. Since approximately May 2013 to present, they have resided at
3 320 Clementina Street, Apartment 412, San Francisco, California. Mr. and Ms. Kemp both use
4 canes for walking. It is extremely difficult for them to walk up or down stairs. Mr. and Ms.
5 Kemp live on the fourth floor.

6 24. Plaintiff Deborah McDonald has been a lease-holding tenant at 320 Clementina
7 Street, Apartment 514, San Francisco, California since approximately October 2005. Ms.
8 McDonald suffers from nerve damages in her back and arthritis. It is difficult for her to walk up
9 or down stairs. Ms. McDonald lives on the fifth floor.

10 25. Plaintiff Mendel Pratt has been a lease-holding tenant at 320 Clementina Street,
11 Apartment 710, San Francisco, California since approximately 2002. Ms. Pratt walks with either
12 a cane or walker. It is very difficult for her to walk up or down stairs. Ms. Pratt lives on the
13 seventh floor.

14 26. Plaintiff Larry Thomas has been a lease-holding tenant at 320 Clementina Street,
15 Apartment 814, San Francisco, California since approximately August 2011. Mr. Thomas
16 recently had surgery after his lung collapsed. It is nearly impossible for Mr. Thomas to walk up
17 or down stairs. Mr. Thomas often uses a scooter for mobility. Mr. Thomas lives on the eighth
18 floor.

19 27. Plaintiff Solomon Watkins has been a lease-holding tenant at 320 Clementina
20 Street, Apartment 1202, San Francisco, California since approximately 2002. Mr. Watkins
21 walks with a cane. It is difficult for him to walk up or down stairs. Mr. Watkins lives on the
22 twelfth floor.

23 28. Plaintiff Keith Williams has been a lease-holding tenant at 320 Clementina
24 Street, Apartment 316, San Francisco, California since approximately 2004. Mr. Williams walks
25 with a cane. It is difficult for him to walk up or down stairs. Mr. Williams lives on the third
26 floor.

27 29. Plaintiff Peter Wong has been a lease-holding tenant at 320 Clementina Street,
28 Apartment 1108, San Francisco, California since approximately 2007. It is difficult for Mr.

1 Wong to walk or stand for extended periods of time. Mr. Wong lives on the eleventh floor.

2 30. On March 6, 2014, prior to commencing this litigation and within the statute of
3 limitations, Plaintiffs Terance Bagby, Curtis Bernard, Patricia Celestine, Horace Chapple, Anita
4 Cunningham, Gerarda Daming, Mary DiGuseppi, James Ellis II, Alexandra Elvir, Francisco
5 Flores, Judy Kemp, Keith Kemp, Deborah McDonald, Mendel Pratt, Larry Thomas, Solomon
6 Watkins, Keith Williams, and Peter Wong each presented timely tort claims (“Tort Claims”), in
7 accord with the provisions of California Government Code section 910, *et seq.*, against
8 Defendant Housing Authority. Said claims were rejected by the San Francisco Housing
9 Authority on April 18, 2014.

10 31. On May 8, 2014, prior to commencing this litigation and within the statute of
11 limitations, Plaintiff Rebecca Busciglio presented a timely Tort Claim in accord with the
12 provisions of California Government Code section 910, *et seq.*, against Defendant Housing
13 Authority. Said claims were rejected by the San Francisco Housing Authority on May 14, 2014.

14 32. On May 16, 2014, prior to commencing this litigation and within the statute of
15 limitations, Plaintiff George Bender presented a timely Tort Claim in accord with the provisions
16 of California Government Code section 910, *et seq.*, against Defendant Housing Authority.
17 Said claims were rejected by the San Francisco Housing Authority on May 27, 2014.

18 33. On June 3, 2014, prior to commencing this litigation and within the statute of
19 limitations, Plaintiff Michael Dismuke presented a timely Tort Claim in accord with the
20 provisions of California Government Code section 910, *et seq.*, against Defendant Housing
21 Authority. Said claims were rejected by the San Francisco Housing Authority on June 17, 2014.

22 34. For the past several years, including on a weekly basis over the six month period
23 preceding the filing of Plaintiffs’ Tort Claims, the elevators in both of the Clementina Towers
24 have not functioned properly. One or both of the elevators in each of the towers are frequently
25 out of order and unavailable for residents’ use. When the elevators are functioning, they often
26 stop at the wrong floor, stop between floors, get stuck for long periods of time, and the elevator
27 doors do not open. The emergency call buttons in the Clementina Towers’ elevators are often
28 out of service or ring without a human response. As a result, Plaintiffs are often stuck in the

1 elevators, cannot leave their apartments, are stuck in the lobby, cannot get back up to their
2 apartments, cannot have guests visit, are forced to use the staircase, and are fearful of using the
3 elevators.

4 35. When the elevators are working, the doors often do not stay open long enough
5 for Plaintiffs to safely exit the elevator. At times, tenants have had walking apparatus and limbs
6 caught in the elevator doors when they are attempting to exit the elevator. On one occasion,
7 when Plaintiff Curtis Bernard attempted to exit the elevator, the doors closed on his hand. His
8 hand was stuck between the two steel doors. As a result, Mr. Bernard suffered personal injury
9 including severe bruising and a laceration, requiring medical attention.

10 36. Despite notice of the faulty elevators at the Clementina Towers, Defendant
11 Housing Authority and the Property Managers have failed to adequately remedy the above-
12 mentioned problems and provide working elevators in each of the towers.

13 37. As a proximate result of Defendant Housing Authority's and its employees' acts
14 and omissions, Plaintiffs suffered from loss of use and enjoyment of their rental apartments,
15 leaseholds worth substantially less than rent paid, medical expenses, emotional distress,
16 statutory damages, statutory penalties, and attorney fees and costs.

17 **FIRST CAUSE OF ACTION FOR BREACH OF WARRANTY OF HABITABILITY**
18 **AGAINST ALL DEFENDANTS**

19 38. Plaintiffs re-allege all preceding paragraphs.

20 39. Implied in Plaintiffs' written residential lease agreement is an implied warranty
21 of habitability, wherein Defendants promised to inspect and maintain the Clementina Towers
22 and maintain all common facilities and areas in a safe, workable, and habitable condition.

23 40. Defendants breached the implied warranty of habitability by failing to inspect
24 and maintain the elevators at the Clementina Towers in a safe, functioning condition.

25 41. Plaintiffs notified Defendants and/or their agents, including Property Managers,
26 of the faulty and/or inoperable elevators at the Clementina Towers. In addition, Defendants
27 actually knew or could have known with reasonable diligence about the elevator issues at the
28 Clementina Towers.

1 42. Defendants ignored all of the above-mentioned elevator repair issues, failed to
2 timely and adequately repair the elevators, and/or negligently repaired them.

3 43. Defendants forced Plaintiffs to live without properly functioning elevators,
4 despite having the financial ability to remedy the repair issues.

5 44. As a proximate result of Defendants' breach, Plaintiffs suffered from leaseholds
6 worth substantially less than rent paid, bodily injury, medical expenses, and loss of use and
7 enjoyment of their rental units.

8 **SECOND CAUSE OF ACTION FOR TORTIOUS BREACH OF THE WARRANTY OF**
9 **HABITABILITY AGAINST ALL DEFENDANTS**

10 45. Plaintiffs re-allege the foregoing paragraphs.

11 46. Implied in Plaintiffs' written residential lease is an implied warranty of
12 habitability, wherein Defendants promised to inspect and maintain the Clementina Towers and
13 maintain all common facilities and areas in a safe, workable, and habitable condition.

14 47. Defendants knew that dangerous conditions existed in the elevators, were
15 informed of the broken, malfunctioning, and unsafe elevators and elevator emergency call
16 buttons, and had the financial ability to fix the conditions, and did nothing.

17 48. Defendants breached the warranty of habitability by failing to inspect and
18 maintain the elevators at the Clementina Towers in a safe, functioning condition.

19 49. Plaintiffs met all their obligations under the lease agreements.

20 50. Plaintiffs notified Defendants and/or Defendants' agents, including Property
21 Managers, of the faulty and/or inoperable elevators at the Clementina Towers. In addition,
22 Defendants actually knew or could have known with reasonable diligence about the elevator
23 issues at the Clementina Towers.

24 51. Defendants ignored all of the above-mentioned elevator repair issues, failed to
25 timely and adequately repair the elevators, and/or negligently repaired them

26 52. Defendants forced Plaintiffs to live without properly functioning elevators,
27 despite having the financial ability to remedy the repair issues.

28 53. Defendants intentionally breached the implied warranty of habitability intending

1 or knowing that such a breach would cause severe harm in the form of mental anguish, personal
2 hardship, and/or substantial consequential damages on Plaintiffs, all of whom are elderly and/or
3 disabled and have mobility issues.

4 54. As a proximate result of Defendants' breach, Plaintiffs suffered from leaseholds
5 worth substantially less than rent paid, bodily injury, medical expenses, and loss of use and
6 enjoyment of their rental units.

7 55. As a proximate cause of the breaches by Defendants, Plaintiffs suffered from
8 annoyance, loss of enjoyment of life, mental anguish, sleeplessness, anxiety, worry, fear,
9 claustrophobia, discomfort, embarrassment, and humiliation.

10 **THIRD CAUSE OF ACTION FOR NUISANCE AGAINST ALL DEFENDANTS**

11 56. Plaintiffs re-allege the preceding paragraphs.

12 57. Plaintiffs leased their respective units in the Clementina Towers from Defendant
13 Housing Authority.

14 58. Defendants, by acting and failing to act, created conditions that were harmful to
15 health, indecent and offensive to the senses, and an obstruction to the free use of property, so as
16 to interfere with Plaintiffs' comfortable enjoyment of life and property.

17 59. Defendants, by acting and failing to act, created conditions with the elevators
18 that interfered with Plaintiffs' use and enjoyment of the Clementina Towers.

19 60. Plaintiffs did not consent to Defendants' acts and failures to act.

20 61. An ordinary person would be reasonably annoyed and disturbed by Defendants'
21 conduct.

22 62. Defendants harmed Plaintiffs, and Plaintiffs suffered from leaseholds worth less
23 than rent paid, mental injury, medical expenses, and loss of use and enjoyment of their rental
24 home.

25 63. Defendants' conduct was a substantial factor in causing Plaintiffs' harm.

26 64. There is no public benefit to Defendants' conduct.

27 **FOURTH CAUSE OF ACTION FOR NEGLIGENCE AGAINST ALL DEFENDANTS**

28 65. Plaintiffs re-allege the preceding paragraphs.

1 66. Defendants owed a duty of care as landlords and managers of residential
2 property.

3 67. Defendants breached that duty by failing to repair the Clementina Towers
4 elevators and by making substandard repairs to the Clementina Tower elevators.

5 68. Defendants violated the following state and local laws in failing and refusing to
6 repair the Clementina Tower elevators, among others, Health and Safety Code section
7 17920.3(f), defining minimum requirements for habitable buildings, and California Code of
8 Regulations, Title 8, section 3041, defining requirements for emergency and signal devices in
9 elevators.

10 69. These state laws are designed to protect plaintiffs from the very harm
11 complained about herein. All of these laws were in effect at all relevant times in this complaint.

12 70. Defendants' violations of these laws were a substantial factor in causing harm to
13 Plaintiffs.

14 71. Plaintiffs suffered from serious emotional distress, including anguish, horror,
15 nervousness, grief, anxiety, worry, shock, humiliation, embarrassment, claustrophobia, loss of
16 enjoyment of life, and shame.

17 72. The emotional distress suffered by Plaintiffs was sufficiently severe that an
18 ordinary person would have been unable to deal with it.

19 73. As a proximate result of Defendants' breach of their duty, Plaintiffs suffered
20 from leaseholds worth less than rent paid, mental injury, medical expenses, and loss of use and
21 enjoyment of their rental units.

22 **FIFTH CAUSE OF ACTION FOR BREACH OF THE COVENANT OF QUIET**
23 **ENJOYMENT AGAINST ALL DEFENDANTS**

24 74. Plaintiffs re-allege the foregoing paragraphs.

25 75. Implied in Plaintiffs' residential lease for their units at the Clementina Towers is
26 an implied covenant of quiet enjoyment.

27 76. Plaintiffs met all their obligations under the lease agreements.

28 77. Defendants substantially breached this implied covenant of quiet enjoyment by

1 failing to inspect and maintain the elevators at the Clementina Towers in a safe, functioning
2 condition, including but not limited to the ways described above.

3 78. As a proximate result of Defendants' breach of the covenant of quiet enjoyment,
4 Plaintiffs suffered from leaseholds worth substantially less than rent paid and loss of use and
5 enjoyment of their rental units.

6 **SIXTH CAUSE OF ACTION FOR TORTIOUS BREACH OF THE COVENANT OF**
7 **QUIET ENJOYMENT AGAINST ALL DEFENDANTS**

8 79. Plaintiffs re-allege the foregoing paragraphs.

9 80. Implied in Plaintiffs' residential lease agreements for their units in the
10 Clementina Towers is an implied covenant of quiet enjoyment.

11 81. Plaintiffs met all their obligations under the lease agreements.

12 82. Defendants substantially breached this implied covenant of quiet enjoyment by
13 failing to inspect and maintain the elevators at the Clementina Towers in a safe, functioning
14 condition, including but not limited to the ways mentioned above. Defendants knew that
15 dangerous conditions existed in the elevators, were informed of the broken, malfunctioning, and
16 unsafe elevators and elevator emergency call buttons, and had the financial ability to fix the
17 conditions, and did nothing.

18 83. Defendants forced Plaintiffs to live without properly functioning elevators,
19 despite having the financial ability to remedy the repair issues.

20 84. Defendants intentionally breached the implied covenant of quiet enjoyment
21 intending or knowing that such a breach would cause severe harm in the form of mental
22 anguish, personal hardship, and/or substantial consequential damages to Plaintiffs, who are all
23 elderly and/or disabled and have mobility problems.

24 85. As a proximate result of Defendants' breach of the covenant of quiet enjoyment,
25 Plaintiffs suffered from leaseholds worth substantially less than rent paid and loss of use and
26 enjoyment of their rental units.

27 86. As a proximate cause of the breaches by Defendants, Plaintiffs suffered from
28 annoyance, mental anguish, sleeplessness, anxiety, worry, fear, discomfort, loss of enjoyment of

1 life, embarrassment, and humiliation.

2 **SEVENTH CAUSE OF ACTION FOR ELDER ABUSE BY PLAINTIFFS BERNARD,**
3 **DAMING, ESTATE OF DIGUISEPPI, AND WATKINS AGAINST ALL DEFENDANTS**

4 87. Plaintiffs Curtis Bernard, Gerarda Daming, Estate of Mary DiGuisseppi, and
5 Solomon Watkins re-allege the preceding paragraphs.

6 88. Defendants owed a duty of care to Plaintiffs as landlords and/or property
7 managers. Plaintiffs are all elderly and disabled residential tenants who have mobility
8 problems.

9 89. Plaintiffs Curtis Bernard, Gerarda Daming, Solomon Watkins, and Mary
10 DiGuisseppi were all over sixty-five years old six months prior to the filing of their Tort Claims
11 with Defendant Housing Authority. Plaintiff Curtis Bernard's date of birth is November 13,
12 1944. Plaintiff Gerarda Daming's date of birth is April 24, 1934. Plaintiff Solomon Watkin's
13 date of birth is November 3, 1937. Mary DiGuisseppi's date of birth is September 18, 1920.

14 90. Defendants failed to use the degree of care that a reasonable landlord or property
15 manager in the same situation would have used in protecting Plaintiffs Curtis Bernard, Gerarda
16 Daming, Solomon Watkins, and Mary DiGuisseppi from safety hazards related to broken
17 elevators in the Clementina Towers.

18 91. As a proximate result of Defendants' conduct, Plaintiffs Curtis Bernard, Gerarda
19 Daming, Mary DiGuisseppi, and Solomon Watkins suffered from loss of enjoyment of their
20 rental units, emotional distress, attorney fees, and litigation costs. Additionally, as a proximate
21 result of Defendants acts and failures to act, Plaintiff Curtis Bernard suffered personal injury
22 when his hand was trapped in between the elevator doors.

23 92. Defendants' conduct, including but not limited to the acts and failures to act
24 described above, was a substantial factor in causing Plaintiffs Curtis Bernard's, Gerarda
25 Daming's, Mary DiGuisseppi's, and Solomon Watkins' harm.

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EIGHTH CAUSE OF ACTION FOR DISPARATE IMPACT DISABILITY
DISCRIMINATION IN VIOLATION OF THE FAIR EMPLOYMENT AND HOUSING
ACT AGAINST ALL DEFENDANTS

93. Plaintiffs re-allege the preceding paragraphs.

94. Plaintiffs leased residential units in the Clementina Towers from Defendant Housing Authority. The Clementina Towers are managed by Defendants and/or their agents, including but not limited to Property Managers. At all relevant times, Property Managers were agents and/or employees of Defendants.

95. The Fair Employment and Housing Act (FEHA), Government Code section 12900 *et seq.*, prohibits housing discrimination on the basis of race, color, religion, sex, sexual orientation, marital status, national origin, ancestry, familial status, disability, or source of income.

96. Plaintiffs each have disabilities, as defined under the FEHA. Plaintiffs' disabilities affect their mobility and ability to walk up and down stairs.

97. Defendants violated the FEHA when they employed a practice of not timely or adequately fixing broken elevators in the Clementina Towers. Defendants' practice and policy had a disproportionate adverse effect on tenants with disabilities affecting mobility.

98. Plaintiffs and were harmed by Defendants' practice of not timely or adequately fixing the broken elevators. As a result of Defendants' practice, Plaintiffs are often stuck in the elevators, cannot leave their apartments, are stuck in the lobby, cannot get back up to their apartments, cannot have guests visit, are forced to use the staircase, and are fearful of using the elevators. When the elevators are working, the doors often do not stay open long enough for Plaintiffs to safely exit the elevator. At times, several Plaintiffs have had walking apparatus and limbs caught in the elevator doors when they are attempting to exit the elevator.

99. Defendants' business practice of not timely or adequately fixing or replacing the elevators had an adverse impact on Plaintiffs that cannot be justified by a business necessity. Defendants' practice disparately impacts tenants with disabilities which affect mobility, like Plaintiffs. Defendants did not have a legitimate business interest in employing a practice of not

1 timely or adequately fixing the broken elevators.

2 100. As a proximate result of Defendants' acts and omissions, Plaintiffs have suffered
3 from leases worth substantially less than rent paid, mental injury, bodily and personal injury,
4 medical expenses, statutory penalties, attorney fees and court costs, and loss of use and
5 enjoyment of their rental units. Defendants' practice of not timely or adequately fixing the
6 broken elevators was a substantial factor in causing Plaintiffs' harm.

7 **NINTH CAUSE OF ACTION FOR FAILURE TO PROVIDE REASONABLE**
8 **ACCOMMODATION FOR VIOLATION OF THE FAIR EMPLOYMENT AND**
9 **HOUSING ACT AGAINST ALL DEFENDANTS**

10 101. Plaintiffs re-allege the preceding paragraphs.

11 102. Plaintiffs leased residential units in the Clementina Towers from Defendant
12 Housing Authority. The Clementina Towers are managed by Defendants and/or their agents,
13 including but not limited to Property Managers. At all relevant times, Property Managers were
14 agents and/or employees of Defendants.

15 103. The Fair Employment and Housing Act (FEHA), Government Code section
16 12900 *et seq.*, prohibits housing discrimination on the basis of race, color, religion, sex, sexual
17 orientation, marital status, national origin, ancestry, familial status, disability, or source of
18 income.

19 104. Plaintiffs each have disabilities, as defined under the FEHA. Plaintiffs'
20 disabilities affect their mobility and ability to walk up and down stairs.

21 105. Defendants knew of Plaintiffs' disabilities and that they limited Plaintiffs' ability
22 to walk up and down stairs.

23 106. Defendants violated the FEHA when they failed to provide a reasonable
24 accommodation for Plaintiffs' disabilities affecting mobility and their need for use of reliable
25 elevator service.

26 107. Defendants did not have a legitimate business interest in not providing reliable
27 elevator service to allow Plaintiffs to access their units in the Clementina Towers.

28 108. As a proximate result of Defendants' acts and omissions, Plaintiffs have suffered

1 from leases worth substantially less than rent paid, mental injury, bodily and personal injury,
2 medical expenses, statutory penalties, attorney fees and court costs, and loss of use and
3 enjoyment of their rental units. Defendants' failure to provide a reasonable accommodation for
4 Plaintiffs' disabilities was a substantial factor in causing Plaintiffs' harm.

5 **TENTH CAUSE OF ACTION FOR INJUNCTIVE RELIEF**

6 109. Plaintiffs re-allege the preceding paragraphs.

7 110. An actual controversy now exists between Plaintiffs and Defendants in that Plaintiff
8 contends:

9 (a) The elevators at the Clementina Towers are not reliable, not safe, and do have
10 functioning emergency call and emergency stop features.

11 (b) Defendants have a duty to ensure that the elevators in the Clementina Towers are
12 operable and safe.

13 (c) Plaintiffs have a right to operable and safe elevators in the Clementina Towers.

14 111. Defendants contend to the contrary and deny that they are obligated to fulfill those duties
15 or that Plaintiffs have these rights.

16 112. By virtue of the above controversy, Plaintiffs seek a declaration as to the above and to
17 enjoin Defendants to replace the Clementina Tower elevators with safe and operable units.

18 WHEREFORE, Plaintiffs pray for judgment against Defendants as follows:

19 1. For injunctive relief ordering Defendants to replace the elevators at the
20 Clementina Towers;

21 2. For general damages;

22 3. For special damages according to proof;

23 4. For prejudgment interest on the amount of any damages awarded;

24 5. For damages for injury, including doctor's care, medical expenses, and
25 emotional distress under applicable causes of action;

26 6. For contractual damages under applicable causes of action;

27 7. For attorney fees and costs, including litigation expenses and costs of experts,
28 either as costs, expenses or damages under the Elder Abuse and Violation of Fair Employment

1 and Housing Act causes of action;

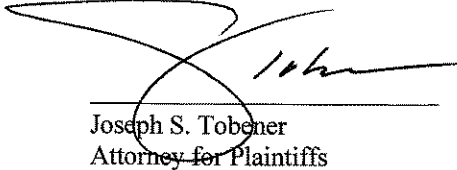
2 8. For statutory damages;

3 9. For statutory penalties under applicable causes of action; and

4 10. For such other and further relief as the court may deem just and proper.

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6 DATED: April 20, 2015

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8 TOBENER LAW CENTER

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11 Joseph S. Tobener
12 Attorney for Plaintiffs
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PROOF OF SERVICE

I am employed in the County of San Francisco, State of California. I am over the age of 18 and not a party to the within action. My business address is 21 Masonic Avenue, Suite A, San Francisco, California 94118.

On today's date, I served the following document(s) described as **SECOND AMENDED COMPLAINT FOR DAMAGES AND INJUNCTIVE RELIEF** on all parties in this action as follows:

Mr. Kevin Cholakian
CHOLAKIAN AND ASSOCIATES
400 Oyster Boulevard, Suite 415
South San Francisco, California 94080
Facsimile: (650) 871-9552

 X By placing a true copy of the above-referenced document(s) in a sealed envelope. I am readily familiar with the firm's practice of collection and processing of mailing. Under the practice, it would be deposited with the U.S. Postal Service on that same day with postage thereon fully prepared at San Francisco, California in the ordinary course of business.

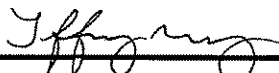
 By Fax. I forwarded the above-referenced document(s) by fax to the office of the addressee(s) at the fax number listed above.

 By E-mail. I forwarded the above-referenced document(s) by email to the office of the addressee(s) at the email address listed above.

 By Personal Service. By causing a true copy thereof enclosed in a sealed envelope, to be personally delivered on the date indicated below.

Executed on April 20, 2015 at San Francisco, California.

I declare under penalty of perjury under the laws of the State of California that the above is true and correct.


Tiffany Moyes